

Pronti Deed of Exit — Clause-by-Clause Risk Table

Clause-by-clause risk assessment. Risk levels: **Critical**, **High**, **Medium**, **Low**.

Clause number	Risk	Why risky
Background A	Low	Confirms the consultant provided DevOps, cloud, deployment and technical support services as an independent contractor. Mostly factual.
Background B	Critical	Says all Services have already been paid. If any invoice, fee, reimbursement or other amount is still unpaid, signing this creates a serious problem for recovering it later.
Background C	Medium	Fixes 1 October 2026 as the Separation Date and says the engagement ended by agreement. This can affect notice-period or termination-payment claims.
Background D	High	Confirms the consultant had access to sensitive infrastructure, credentials, IP addresses, Cloudflare, cloud accounts, API keys and secrets. This supports later security/confidentiality claims against the consultant.
Background E	High	Makes the Experience Letter part of the bargain for accepting the deed's obligations. The letter is being used as leverage to obtain the consultant's promises.
Prior Arrangements definition	Critical	Covers previous agreements, drafts, offers, emails, messages and oral arrangements, whether signed or not. The deed is designed to replace earlier understandings.
Commencement Date definition	Medium	Several obligations are made retrospective to the first day of Services, so the exact commencement date matters.
Company Materials definition	Critical	Extremely broad. Includes code, data, backups, documentation, credentials, configurations, infrastructure information, devices and other Company property.
Company Systems definition	Critical	Covers almost the entire technical environment: servers, cloud, databases, repositories, CI/CD, DNS, CDN, Cloudflare, domains, monitoring and third-party services. Missing one can create handover risk.
Competing Business definition	Critical	Very broad competitor definition. It can cover businesses developing substantially similar delivery/logistics/technology platforms and can extend to countries where the Company operates or plans to operate.
Confidential Information definition	Critical	Covers information whether or not marked confidential, including business, customer, infrastructure, architecture, algorithms, pricing, strategy and the deed itself.
Credentials definition	Critical	Includes passwords, API keys, secrets, tokens, certificates, SSH keys, signing keys, recovery codes and 2FA. Forgotten credentials can create breach exposure.
Harmful Act definition	Medium	Imports the prohibited acts from clause 7.1 into later warranties and obligations.
Infrastructure Information definition	Critical	Covers current and historical IPs, network topology, firewall/WAF/Cloudflare configuration, hosting, architecture, deployment procedures, security controls and vulnerabilities.
Intellectual Property Rights definition	High	Extremely broad worldwide definition covering software, code, inventions, patents, designs, databases, trade secrets, know-how and similar rights.

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Personal Information definition	High	Uses both Australian and Indian privacy-law concepts, potentially creating obligations across both jurisdictions.
Related Entity definition	Critical	Extends protection to related bodies and entities controlled by Company directors that operate/support the Pronti platform.
Restraint Period definition	Critical	Establishes a 12-month period after separation for the restrictive covenants.
Third Party definition	High	Covers anyone other than the consultant who performed Services or obtained access through the consultant. Important because clause 10.6 makes the consultant responsible for Third Party conduct.
Work Product definition	Critical	Covers code, scripts, infrastructure-as-code, pipelines, documentation, designs, data, inventions, improvements and other work created/contributed to in connection with Services, including incomplete work.
1.2	High	"Including" is expressly non-limiting and the deed says no interpretation rule applies against the Company because it prepared the deed. This supports a broad interpretation.
2.1	Critical	Makes the deed standalone. The consultant's obligations do not depend on whether an earlier agreement was valid or enforceable.
2.2	Critical	Says clauses 6–9 apply from the Commencement Date, including retrospectively where they did not previously bind the consultant.
2.3	Critical	Replaces all Prior Arrangements and says the consultant has no rights under them, while Company protections from prior arrangements may be preserved. Strongly one-sided.
2.4	High	Says the engagement ended by mutual agreement and no notice period, payment in lieu or other termination amount applies.
2.5	Critical	Consultant confirms they were always an independent contractor and gives up potential salary, leave, gratuity, PF, superannuation, bonus, equity and other employment-related entitlements.
3.1	Critical	Requires return of all Company Materials within 48 hours and permanent deletion from devices, email, messaging apps, cloud storage, password managers and authenticators. Very difficult to guarantee across backups and old devices.
3.2	Critical	Specifically includes database dumps, backups, exports, .env files, SSH keys, screenshots, notes and credential/infrastructure records. Accidental retention can become a breach.
3.3	Critical	Requires a notarised affidavit or approved certification confirming no Company Materials remain and making several factual declarations.
3.3(a)	Critical	Requires confirmation that no Company Materials are retained anywhere. A forgotten backup or file can make the certification inaccurate.
3.3(b)	Critical	Requires confirmation that all Company accounts and credentials were removed from password managers/authenticators.
3.3(c)	Critical	Requires identifying every copy, export or download of Company data made during the engagement. This is extremely broad and difficult to establish from memory.
3.3(d)	Critical	Requires confirmation that no Company Materials, credentials or infrastructure information were disclosed to anyone. Any historical sharing must be accurately disclosed.
3.3(e)	Critical	Requires confirmation that no Third Party accessed Company systems/materials through the consultant except as disclosed in Schedule 1.

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3.3(f)	Critical	Requires confirmation that Schedule 1 is complete and accurate. This makes the technical inventory a contractual warranty.
3.4	Critical	If the Company reasonably suspects retention, access or disclosure, it can require forensic inspection of devices, accounts or storage used for Services. If a breach is found, consultant pays examiner costs. This can affect personal devices/accounts.
3.5	High	If Company Materials are discovered later, consultant must notify within 24 hours and follow Company instructions. Short deadline and ongoing obligation.
3.6	Critical	Confirms all Work Product is in Company repositories/systems and none exists in personal repositories/accounts/systems. A forgotten private/local copy creates risk.
4.1	Critical	Requires a complete list within 48 hours of every Company System administered or credential held, every sole-admin account and every known credential.
4.2	Critical	Requires transfer of ownership/super-admin rights for Cloudflare, cloud accounts, domain registrar, repositories, app stores and other systems.
4.3	Medium	Requires replacement of personal email, phone or authenticator used for Company access. Reasonable, but obtain written confirmation that personal recovery methods are removed.
4.4	High	Requires documentation of deployment, release, backup, monitoring, incident procedures and work in progress plus handover sessions. No separate payment is stated for this post-exit work.
4.5	Critical	Prohibits changing/deleting/disabling/reconfiguring systems, credentials, DNS, firewall or Cloudflare except on written instruction. Verbal instructions create evidence problems.
5.1	Critical	No access to Company Systems after Separation Date except written authorization for handover. Even an innocent login/check can become unauthorized access.
5.2	Critical	Explicitly characterizes unauthorized access as potentially falling under Indian IT law, including sections 43 and 66, and equivalent laws elsewhere.
5.3	Medium	Company can change credentials, IPs and configurations without notifying the consultant.
6.1	Critical	Requires strict confidentiality and prohibits use, disclosure, publication, sale or sharing of Confidential Information for any purpose.
6.2	Critical	Specifically prohibits disclosure of infrastructure information and credentials, including online posting or giving them to someone who could use them.
6.3	High	If legally compelled to disclose information, consultant must notify Company first where lawful and cooperate with protective measures.
6.4	Critical	Confidentiality obligations continue without any time limit.
7.1(a)	Critical	Permanently prohibits denial-of-service, flooding, traffic/load attacks and other disruptive acts. Breach is subject to the deed's strong remedies.
7.1(b)	Critical	Prohibits accessing, scanning, probing or testing Company systems/IPs. Even security testing should not be done without written authorization.
7.1(c)	Critical	Prohibits malicious code, backdoors, hidden processes, unauthorized users, scheduled tasks and remote access mechanisms.

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7.1(d)	Critical	Prohibits deleting, altering, encrypting, corrupting, withholding or exfiltrating Company data, code, backups or configurations.
7.1(e)	Critical	Prohibits changing, disabling or misdirecting DNS, Cloudflare, firewall, security or monitoring settings.
7.1(f)	Critical	Prohibits bypassing or circumventing security measures.
7.2	Critical	Consultant confirms these prohibited acts never occurred and confirms no undisclosed access mechanism, account, key, scheduled task or code was left behind. Historical warranty.
7.3	High	Requires immediate written notification of actual/threatened harmful acts or credential/infrastructure disclosure.
8.1	Critical	Says all Work Product and related IP belong to Company absolutely from creation.
8.2	Critical	Irrevocably assigns existing and future Work Product/IP to Company.
8.3(a)	Critical	Defines assigned works broadly, including code, scripts, configurations and documentation in Company repositories/systems.
8.3(b)	Critical	Assigns all rights in all media and forms now known or developed in future.
8.3(c)	Critical	Assignment lasts for the full copyright term plus renewals/extensions.
8.3(d)	Critical	Assignment is worldwide.
8.3(e)	Critical	Assignment will not lapse or revert merely because Company does not exercise a right.
8.4	Critical	Background IP receives a perpetual, irrevocable, worldwide, royalty-free, transferable and sublicensable licence if incorporated into or needed to use/maintain/modify Work Product. Important for reusable personal tools/templates.
8.5	High	Waives moral/author rights as far as legally permitted and permits modification/publication without attribution.
8.6	Critical	Consultant warrants no Work Product was assigned/licensed elsewhere and no Work Product infringes third-party rights.
8.7(a)	Critical	Warrants no malicious code, backdoor, undisclosed account or remote access mechanism was introduced.
8.7(b)	Critical	Warrants no open-source/third-party code or confidential information was included on terms restricting Company's ownership/use/modification/commercial exploitation. This should be checked against dependencies.
8.7(c)	Critical	Warrants no subcontracting or access sharing except what Schedule 1 discloses.
8.7(d)	High	Warrants compliance with all applicable laws, including anti-bribery and anti-corruption laws. Broad legal warranty.
8.8	Critical	Prohibits using Work Product or Company Materials to build, assist or advise another product/business. Needs distinction between Company-specific material and general skills/knowledge.
8.9	Critical	Requires future IP cooperation without further payment and gives Company/directors a claimed power of attorney to sign documents in consultant's name if consultant fails to act within 7 days. Major legal risk.

Clause number	Risk	Why risky
9.1	Critical	Consultant confirms holding no Company personal information. If any local DB, dump, log, export, screenshot or backup contains personal data, this statement may be false.
9.2	Critical	Requires conduct that does not cause Company to breach Australian/Indian privacy and related laws. Broad compliance obligation.
10.1 opening	Critical	12-month restrictions apply across employment, contracting, consulting, advising, partnership, shareholding and other involvement.
10.1(a)	High	Cannot solicit/encourage Company employees, contractors or development team members to leave or reduce their engagement.
10.1(b)	High	Cannot solicit/entice away retailers, customers, drivers, suppliers or partners or encourage them to reduce dealings with Company.
10.1(c)	Critical	Cannot build/contribute to a platform that replicates or is substantially derived from Company's architecture, infrastructure, features, algorithms or workflows. Can affect future work in similar products.
10.1(d)	Critical	Cannot provide DevOps, infrastructure, engineering or technical services to a Competing Business for 12 months. Direct future-employment restriction.
10.2	Critical	Before joining a Competing Business, consultant must disclose the business/role to Company and give the new business copies of key restrictions. Company may notify the new business itself.
10.3	Critical	Broad non-disparagement restriction covering LinkedIn, social media, GitHub, forums, review sites, employer-rating sites and press. It is not expressly limited to false statements.
10.4	High	Cannot use Company name, logo, trademarks or Work Product in portfolio/case study/publicity without written consent. CV/profile/interview use is limited to a general role description.
10.5	High	For 30 days, consultant must respond within 2 business days to reasonable/limited handover questions. No separate payment is stated.
10.6	Critical	If a Third Party accessed systems through consultant, consultant must obtain an equivalent undertaking if requested and is liable for that Third Party's acts/omissions as if they were the consultant's own.
10.7	Critical	Consultant acknowledges the restraints are reasonable and necessary and that each is separate/severable. This is drafted to strengthen Company's position if a restriction is challenged.
11.1	Critical	Experience Letter is conditional on signed deed, completed handover and Certification.
11.2	Critical	Company need not issue the Experience Letter if consultant breaches before it is issued.
11.3	High	Company agrees to verify engagement consistently with the Experience Letter unless withdrawn. Useful protection, but conditional.
11.4	Critical	Company can withdraw the Experience Letter for material breach of clauses 3–10 or false/misleading Schedule 1/Certification and can tell verification requests that it was withdrawn.
11.5	Critical	Experience Letter, non-disparagement promise and AUD 10 are stated to be consideration for the deed and IP assignment. The deed also says it binds as a deed regardless of consideration.

Clause number	Risk	Why risky
11.6	Critical	Consultant confirms all fees/amounts are paid and promises not to submit further invoices or claim further compensation/benefits. Do not sign this if anything is outstanding.
11.7	Critical	Broad release of Company, Related Entities, directors, officers and personnel from known/unknown claims relating to Services, prior arrangements, engagement or its end, including fees, employment entitlements and IP claims.
11.8	Critical	Consultant warrants Schedule 1 and Certification are true, complete and not misleading. Company says it relies on this warranty.
12.1	Critical	Company can seek injunctions, specific performance and other equitable remedies without proving actual damage, plus damages and costs. Gives Company strong legal leverage.
12.2	Critical	Broad indemnity for all loss, damage, costs and liability, including full legal costs, forensic investigation, incident response, credential rotation, infrastructure changes, restoration and notifications.
12.3	Critical	Consultant liability is expressly not capped . There is no maximum financial exposure.
12.4	Critical	Company's total liability to consultant is limited to issuing the Experience Letter. This is highly asymmetric against the consultant.
12.5	High	Company can set off amounts the consultant owes against amounts Company owes the consultant. Important if any payment remains outstanding.
12.6	High	Company retains the right to report suspected offences to law enforcement in India, Australia or elsewhere.
13.1	Critical	Indian law governs, but Company can also bring proceedings in other competent courts including NSW Australia. This creates cross-border litigation exposure.
13.2	Medium	If a provision is unenforceable, it can be narrowed/severed while the rest continues. One failed clause does not necessarily invalidate the deed.
13.3	Critical	Says amendments need writing signed by the Company . It does not expressly require the consultant's signature. This is asymmetric and should be changed to require both parties.
13.4	Critical	Clauses 2 and 5–14 survive indefinitely except the 12-month restraint in 10.1. Many obligations therefore continue after handover permanently.
13.5	Low	Sets email as a valid method for notices. Mainly administrative.
13.6	Medium	Company can arrange stamping in India and consultant must sign documents reasonably required for it. Additional post-signing cooperation obligation.
13.7	High	Deed binds heirs/legal representatives; consultant cannot assign rights while Company can assign rights to Related Entities or a purchaser. Asymmetric.
14.1	Critical	Consultant becomes bound when they sign, witness and deliver the deed, even if Company has not signed it. Do not assume countersignature is required.
14.2	Critical	Consultant confirms they understand English, read/understood the deed, had an opportunity for independent legal advice and signed voluntarily. This makes later claims of misunderstanding harder.

Clause number	Risk	Why risky
Execution — Company	Medium	Company execution must comply with the stated Corporations Act execution method. Check that the execution block is correctly completed.
Execution — Consultant	Critical	Consultant must execute as a deed in front of witnesses. Witnessing/delivery formalities matter because the document relies on deed status.
Schedule 1 — General	Critical	Must be completed within 48 hours and is later warranted to be complete and accurate. This is a technical completeness declaration.
Schedule 1 — Cloudflare	Critical	All Cloudflare account/admin/recovery/transfer information must be identified. Missing access can create handover and warranty problems.
Schedule 1 — Cloud hosting	Critical	AWS/GCP/other cloud accounts and relevant admin access must be identified.
Schedule 1 — Servers and SSH	Critical	Every server and SSH access path must be accounted for without putting private keys/passwords into the schedule.
Schedule 1 — Databases	Critical	Databases, admin access, exports/backups and personal copies need to be considered because of clauses 3 and 9.
Schedule 1 — Domain/DNS	Critical	Every domain registrar/DNS access path needs to be identified and transferred.
Schedule 1 — Code repositories	Critical	Every repository/account containing Company Work Product must be identified. Personal repositories are particularly important because 3.6 says none contains Work Product.
Schedule 1 — CI/CD and secrets	Critical	Deployment pipelines, secret stores and service access must be identified. Forgotten service credentials can become a serious breach issue.
Schedule 1 — Apple/Google developer accounts	High	App-store ownership/admin access must be identified if applicable.
Schedule 1 — Firebase/push notifications	High	Firebase projects, service accounts and notification infrastructure should be accounted for if applicable.
Schedule 1 — Third-party APIs	Critical	Payment, maps, SMS, email and other API accounts must be listed without exposing actual secrets in the document.
Schedule 1 — Monitoring/logging/alerts	Critical	Monitoring and logging systems plus admin/service access must be accounted for.
Schedule 1 — Scheduled jobs/cron/service accounts	Critical	Easy to forget and particularly important because clause 7.2 requires confirmation that no undisclosed scheduled task/access mechanism remains.
Schedule 1 — Third Parties given access	Critical	Every person/vendor/freelancer who received access must be disclosed. Clause 10.6 can make the consultant liable for their conduct.
Schedule 1 — Other	Critical	Catch-all category means the consultant should not assume only the listed systems matter.
Schedule 1 — Declaration	Critical	Consultant confirms the Schedule contains every system, account, access mechanism, scheduled task, service account and Third Party they created/administered/held credentials for/gave access to. This is a broad contractual warranty.

Most Serious Risks

Clause	Risk	Why risky
12.2	Critical	Broad, potentially unlimited indemnity covering legal, forensic, security, infrastructure and notification costs.
12.3	Critical	Explicitly removes any liability cap for the consultant.
12.4	Critical	Company's liability is heavily limited compared with the consultant's uncapped liability.
11.7	Critical	Broad release can eliminate claims against Company relating to the engagement.
11.6	Critical	Confirms everything has been paid and no further invoice/claim exists.
10.1(d)	Critical	12-month restriction on providing technical services to a Competing Business.
10.2	Critical	Requires disclosure of future competing employment and permits Company to notify the new employer.
3.4	Critical	Allows forensic examination of devices/accounts if Company reasonably suspects retention/access/disclosure.
8.4	Critical	Gives Company a perpetual, worldwide, royalty-free licence over incorporated Background IP.
8.9	Critical	Gives Company/directors a claimed power of attorney for IP paperwork if consultant does not cooperate.
10.3	Critical	Broad non-disparagement restriction covering public professional/social platforms and review sites.
13.3	Critical	Amendment wording is Company-only rather than clearly requiring both parties.
13.4	Critical	Most obligations survive indefinitely.